



TALLAHASSEE BOARD OF REALTORS®, INC.

SHORT SALE ADDENDUM TO CONTRACT FOR SALE AND PURCHASE



(REVISED SEPTEMBER 2013)

1 The following provisions are made part of the **Contract for Sale and Purchase** between
2 _____, (Seller) and
3 _____ (Buyer) concerning the Property
4 located at (complete property address) _____

5 **1. APPROVAL OF THE LENDER:** This Contract is contingent upon: (a) the Seller's Lender(s) and/or other lien holder(s)
6 (collectively the "Lender") approval of the purchase price, terms of the Contract and the HUD-1 settlement statement
7 (b) the Lender's agreement to accept a payoff which is less than the balance due on the loan or other indebtedness and
8 (c) the Lender's release and satisfaction of the mortgage(s) and/or other lien(s) upon receipt of discounted payoff. Seller
9 agrees to disclose or provide any requested information or documentation to the Lender for the purpose of obtaining
10 approval of this short sale Contract. BUYER or SELLER may cancel this contract for any reason prior to receiving written
11 notice that lender has approved the purchase price and terms of the contract.

12 **2. TIME PERIODS:**
13 All time periods for inspections, contingencies, deposit(s) and other obligations under the Contract shall commence from
14 the date Seller delivers written notice to Buyer that the Contract has been approved by the Lender.

15 **3. ACKNOWLEDGMENT BY BUYER:** Buyer acknowledges that the Lender is not party to the Contract and therefore is not
16 obligated to approve the Contract. Buyer further acknowledges that Seller and Broker are not liable for delays caused by
17 Lender, failure of the Lender to approve the Contract, failure of the Lender to complete the short sale after approving the
18 Contract or any costs and expenses (BUYERS: payments for loan application, loan terms, inspections, and appraisals) associated
19 with the delays or Lender's failure to approve the Contract or complete the Short Sale after approving the Contract.

20 **4. SELLER ACKNOWLEDGMENT:** Seller acknowledges that a short sale may result in Lender requiring the Seller to pay the
21 difference of what was owed as a deficiency judgment, that the Lender's forgiveness of debt may be a taxable event to
22 the Seller and that Seller's credit may be negatively impacted. Seller also acknowledges that Lender may require Seller
23 to bring funds to Closing or to execute a promissory note. Seller is advised to consult with appropriate financial, legal
24 and tax professionals. Seller agrees to rely on such professionals and not Broker for tax and legal advice. Seller agrees to
25 release Broker and its associates from all liability regarding the consequences of a short sale.

26 **5. BACK-UP CONTRACTS:** (check one - If no option is checked, then option (a) shall be deemed selected) To Simplify the
27 Short Sale process:

28 ☐ (a) Seller Agrees Not to Enter Into Other Contracts. During the term of this Contract, Seller shall not enter into any
29 back-up contracts, options or other agreements concerning the sale of the Property.

30 ☐ (b) Seller has Right to Enter Into Back-up Contracts. During the term of this Contract, Seller may enter into back-up contracts
31 to purchase the Property that are conditioned upon a failure of the Closing of the sale contemplated by this Contract.

32 **6. TERMINATION UPON FORECLOSURE SALE.** If during the term of this Contract, the Property is sold at foreclosure sale
33 prior to the parties obtaining Short Sale Approval and Closing the transaction contemplated by this Contract, this Contract
34 shall be terminated, and Buyer shall be refunded the Deposit thereby releasing Buyer and Seller from all further obligations
35 under this Contract.

36 This addendum amends the above-referenced Contract between Seller and Buyer. All other non-conflicting provisions of
37 that agreement remain in full force and effect.

38 _____
BUYER Date SELLER Date

39 _____
BUYER Date SELLER Date

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